

Amendment No. 1 to HB0408

White
Signature of Sponsor

AMEND Senate Bill No. 689

House Bill No. 408*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-4-201, is amended by deleting the section and substituting the following:

Notwithstanding title 48, chapters 51-69 to the contrary, there is created a nonprofit corporation that is known as the Tennessee student assistance corporation, which operates as a division within the Tennessee higher education commission, to administer student assistance programs authorized by law. The corporation must be registered with the secretary of state, and is subject to the corporate laws of this state, except as provided in parts 2, 3, and 6-9 of this chapter.

SECTION 2. Tennessee Code Annotated, Section 49-4-202, is amended by deleting the section and substituting the following:

(a) The governing board of directors for the Tennessee student assistance corporation as of June 30, 2025, is terminated on July 1, 2025. Effective July 1, 2025, the Tennessee higher education commission, created by § 49-7-201, shall serve as the governing board of directors for the Tennessee student assistance corporation.

(b) The Tennessee student assistance corporation shall carry out the purposes of this part and parts 3 and 6-9 of this chapter. The commission is authorized and empowered to expend for the necessary administration of this part and parts 3 and 6-9 of this chapter any funds appropriated, received, or allocated for the purposes of this part and part 3 and 6-9 of this chapter.

SECTION 3. Tennessee Code Annotated, Section 49-7-202(g), is amended by deleting the subsection and substituting the following:

(1)

(A) The commission shall establish a review committee to aid in development or revision of the higher education master plan, state financial aid, and funding formula. The committee consists of the executive director of the Tennessee higher education commission, the chancellor of the board of regents, the president of the University of Tennessee system, each president of a board of regents state university, the commissioner of finance and administration, the comptroller of the treasury, the chairs of the standing committees on education and finance, ways and means of the senate, the chair of the standing committees of the house of representatives having jurisdiction over education, the chair of the standing committees of the house of representatives having jurisdiction over finance, and the directors of the office of legislative budget analysis, or their designees.

(B) In addition to the committee members established in subdivision (g)(1)(A), the committee also consists of the president of the Tennessee Independent Colleges and Universities Association, but the president of the Tennessee Independent Colleges and Universities Association only serves on the committee for the development or revision of the higher education master plan and for state financial aid.

(2) The committee shall review the funding formula components, as well as identify needed revisions, additions, or deletions to the formula. The committee shall also ensure that the funding formula is linked to the goals and objectives of the master plan.

(3) The review committee shall meet at least annually.

SECTION 4. Tennessee Code Annotated, Section 49-4-212, is amended by adding the following as a new subsection:

(f) The Tennessee teaching scholars program is terminated on July 1, 2025, except for the purpose of TSAC administering the program requirements for all remaining outstanding loans.

SECTION 5. Tennessee Code Annotated, Section 49-4-706, is amended by adding the following as a new subsection:

(c) The minority teaching fellows program created in this section is terminated on July 1, 2025, except for the purpose of TSAC administering the program requirements for all remaining outstanding loans.

SECTION 6. Tennessee Code Annotated, Section 49-4-943(a), is amended by deleting "§ 33-1-101" and substituting "§ 52-1-101".

SECTION 7. This act takes effect July 1, 2025, the public welfare requiring it.